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Document Owner: General Counsel, Enterprise

Standard Terms and Conditions: VI Business (India)

1) Executive Purpose and Applicability

This document codifies the foundational legal baseline—the Master Services Agreement (MSA) scaffolding—under which VI Business (India) delivers enterprise telecommunication and cybersecurity services. It enforces rigid contractual positions to isolate liability and maintain DPDP Act compliance.

Intended Audience: Legal Counsel, Deal Desk, Commercial Leads. **Applicability:** For appending to RFP responses where the client demands an advance copy of base commercial terms, or for answering "Legal Compliance" annexures.

2) Definitions and Assumptions

Definitions:

- **MSA:** Master Services Agreement.
- **DPDP Act:** Digital Personal Data Protection Act, 2023.

Assumptions:

- **Internal Control:** Accepting a Customer's MSA draft without injecting these standard protective terms explicitly requires VP Corporate Finance and General Counsel authorization.

3) Detailed Core Sections

3.1 Limitation of Liability (LoL)

- **Standard Stance:** VI Business (India)'s total aggregate liability arising out of or related to this Agreement (whether in contract, tort, or otherwise) shall be strictly capped at one hundred percent (100%) of the total fees paid by the Customer for the specific affected Service during the twelve (12) months immediately preceding the event giving rise to the claim.
- **Exclusions:** In no event shall either party be liable for any indirect, incidental, consequential, special, or punitive damages, including but not limited to loss of profits, revenue, or data loss.

3.2 Service Level Agreement (SLA) Penalties / Liquidated Damages

- **Standard Stance:** The sole and exclusive remedy for any failure to meet an SLA metric (e.g., failing to meet 99.99% Hub availability, or missing <4 hour containment targets) shall be the issuance of Service Credits.
- **Cap:** Accumulated Service Credits shall categorically not exceed `10%` of the Monthly Recurring Charge (MRC) for the individual affected site or service in the month the failure occurred.

3.3 Data Privacy and Sovereignty (DPDP Act, 2023)

- **Standard Stance:** The Customer acknowledges they act as the "Data Fiduciary" and VI Business (India) acts solely as the "Data Processor" regarding payload data traversing the managed networks.
- **Data Residency Guarantee:** VI Business confirms all SIEM log data generated by the Managed SOC, alongside network telemetry utilized for assurance, are processed and stored exclusively within the sovereign territory of India, aligned completely with the DPDP Act 2023. No cross-border data transfer of management telemetry is permitted.

3.4 Lawful Interception and Regulatory Compliance

- **Standard Stance:** Services are provisioned under the strict terms of the Unified License (UL) granted by the Department of Telecommunications (DoT), India. VI Business is legally bound to comply with all lawful interception, monitoring, and decryption directives issued by authorized Indian intelligence and security agencies without providing prior notification to the Customer.

3.5 Lock-in Period and Termination

- **Standard Stance:** Managed Services are subject to a minimum lock-in period (typically 36 months). Termination for convenience during this lock-in period legally requires the Customer to pay the remaining MRC for the entire unexpired lock-in duration, plus any unrecovered capital costs associated with deployed hardware.

4) Evidence and Proof-Artifact Map

Clause Segment	Source Document	Governance Owner
Baseline MSA Text	`VI_Enterprise_MSA_Template.docx`	General Counsel
DoT Compliance Annex	`DoT_UL_License_Extract.pdf`	VP, Regulatory Affairs

5) Governance and Ownership

- **Owner:** General Counsel, Enterprise Business
- **Reviewers:** Deal Desk, Corporate Finance, Enterprise CISO.
- **Review Frequency:** Annually, or upon legislative updates to the DPDP Act / TRAI regulations.

6) Constraints, Exclusions, and Dependencies

- **Constraints:** Exceptions to the Liability Cap or SLA Penalty Caps require Deal Desk escalation as documented in the *Deviation or Fallback Legal Positions Guide [VIB-LEGAL-002]*.
- **Dependencies:** SLA measurement methodologies mapping to these commercial penalties are defined in the *SLA and KPI Standard Matrix [VIB-COM-005]*.